

The Objectives Resolution (1949)

The Objectives Resolution was the first constitutional document that proved to be the **‘foundation’** of the constitutional developments in Pakistan. It provided parameters and sublime principles to the legislators. It made the constitution-making process easy task setting some particular objectives before them that would be acceptable to the people of Pakistan who had suffered a lot under the Hindu-dominated majority. The Resolution was moved by Liaquat Ali Khan, the then Prime Minister of the Islamic Republic of Pakistan, and approved on March 12, 1949.

The Constituent Assembly (1947-54)

The first Constituent Assembly came into existence under Indian Independence Act 1947. The elections were held in July 1946 to decide the destiny of the All India Muslim League (AIML)’s claim that it is the only representative party of the Indian Muslims that desire separate homeland, Pakistan. The members from the districts that became part of Pakistan were declared members of the Constituent Assembly. The number of such members was 69. It increased to 79 after the 1947 when some states joined Pakistan and then increase in the population. There were two major parties, Muslim League and Congress in the Assembly at that time. This Assembly had dual functions to perform.

Features of the Objectives Resolution

1. Sovereignty over the entire universe belongs to Almighty Allah alone.
2. The authority which He has delegated to the state of Pakistan through its people for being exercised within the limits prescribed by Him is a sacred trust.
3. Constitution will be framed for sovereign, independent state of Pakistan.
4. The state shall exercise its power through the representatives of the people.
5. Principles of Democracy, freedom, equality, tolerance and social justice as enunciated by Islam will be fully observed.
6. Muslims shall be enabled to organize their lives in accordance with the teachings and requirements of Islam as set out in the Quran and the Sunnah.
7. Minorities to have freedom to freely profess and practice their religions and develop their cultures.
8. Provisions for safeguarding the legitimate interests of minorities, backward and depressed classes.

9. Pakistan shall be a Federation with autonomous units. State's sovereignty and territorial integrity will be protected.

10. People of Pakistan should prosper and attain their rightful place in the comity of nations and make contribution towards international peace and progress and happiness of humanity.

Explanation and Importance

The Resolution declared the sovereignty of God as the distinctive political philosophy. The Western democracy gives the notion that sovereignty lies in the people but this Resolution is important having the concept of the sovereignty of God. It clarified that people would utilize powers gifted by God so they would have to work within the limits prescribed by Him. The exercise of the powers is a sacred trust. The representatives of the people of Pakistan will manage the affairs under the universal ideology of democracy, freedom, equality, tolerance, and social justice with the spirit of an Islamic framework.

The Resolution pledged to give the due respect and rights to the minorities, backward and depressed classes in the benign society of Pakistan. Their rights, interests, religion and culture were not confuted. It's important that the Resolution promised the federating units for due powers, autonomy and territorial integrity.

Objections by Non-Muslims

The major objection by the Non-Muslims was that the government was trying to mix the religion and politics that was against the spirit of democracy. The non-Muslims objected on the 'Sovereignty of Allah' and minorities' rights, saying it would promote inequality in the society. They were also of view that Shariah was not adequate for the modern time. They feared that it would encourage the religious extremists to work for the establishment of a 'theocratic state.'

Importance

The Objectives Resolution is a basic and primary document of the constitutional history of Pakistan. It is a framework that provides mechanism to achieve goals for a better life of the people of Pakistan. It's important that it embraces centrality of Islam to polity sustaining their links with the pre-independence period. Therefore, the AIML's leaders selected the middle way abiding by the Islamic laws and the international democratic values. The Resolution remained '**Preamble**' of all the constitutions due to its importance.

CONSTITUTIONAL ISSUES

Constitution is a set of basic principles and framework for governance and exercise of political power and legal authority. It clarifies the scope of power, relationship among various institutions within the government and society. It has precedence over ordinary laws and cannot be changed like ordinary laws. The Government of India Act (1935) was modified and promulgated in the newly state of Pakistan. The elected members in the 1946 elections made the first Constituent Assembly that faced grievous circumstances.

Major Issues

The major issues, the first constituent assembly faced, were about:

1. Federalism
2. Representation
3. Separate or Joint Electorate
4. The National Language Issue
5. Parliamentary or Presidential system
6. The Islamic or Secular State

1. FEDERALISM

There was consensus on federalism but yet there were many issues to be settled. The main was that Pakistan consisted of two territorial parts, East Pakistan (with more population, less territory but administratively one unit) and West Pakistan (administratively 4 units). Federalism is meant to accommodate such kind of diversity maintaining the unity of the state or country.

Division of power: It was the most difficult question that how the power would be divided between Centre and the Provinces. The heritage of British rule gave the tradition of a Strong Centre. But the provinces were demanding more Autonomy and Provincial Rights. In the Interim Constitution and the 1956 Constitution tradition of strong centre continued.

2. REPRESENTATION

Representation at the federal level was another conflicting issue because East Pakistan and West Pakistan were different in population and size. On the other hand there was diversity in Western part of Pakistan. The provinces of West Pakistan were also different in population and size. All of them were sensitive to their representation and provincial autonomy. To have a Standard Formula for the representation of units and population the Constituent Assembly (CA) formed a Basic Principle Committee (BPC) on March 12, 1949. The primary task of this committee was to frame a set of basic principles for the future constitution of Pakistan.

First BPC Report:

This committee presented its first report on 28th September 1950. According to this report two houses of the parliament were proposed. The lower house was to be elected on the basis of POPULATION and the upper house was to be elected on the basis of equal representation for all the provinces of Pakistan namely East Bengal, West Punjab, Sindh, NWFP and Baluchistan. Equal powers were proposed for the both Houses. No mention of National Language was made. East Bengal opposed this report and Liaqat Ali Khan withdrew it.

Second BPC Report:

BPC presented its final report on 22nd December 1952. According to this report two Houses of the Parliament will enjoy the equal status and powers. It proposed equal representation to East and West wing. This report also faced reaction in both the wings of Pakistan. The principle of parity was not appreciated in both East Pakistan and Punjab.

Muhammad Ali Bogra Formula:

Muhammad Ali Bogra immediately after assuming the office of the Prime Minister presented a formula to resolve the deadlock in constitution making. According to this formula Pakistan would have a bicameral legislature. In upper house there would be EQUAL representation to each of five units. In lower house population will be represented. In this way more representation was given to East Pakistan. Both wings would have equal strength in joint sessions of the two houses.

Reaction to Bogra Formula

It was welcomed in both parts of the country. The principle of parity and representation of the population was appreciated. It also solved the problem of national language by suggesting Urdu and Bengali both as national language.

One Unit of West Pakistan

One Unit of West Pakistan was established on 14th October 1955. The provinces of Punjab, Sindh, NWFP and Baluchistan would be amalgamated in one unit to establish parity between the two parts of the country.

3. SEPARATE OR JOINT ELECTORATE

Separate electorate was adopted on the demand of Muslims in 1909 by the British Government. But the minorities did not favour this after independence. Religious elements supported this as a part of heritage. East: decided for Joint Electorate. West: Separate electorate. 1957: Joint Electorate was adopted for all Pakistan by the National Assembly.

4: THE NATIONAL LANGUAGE ISSUE

Pre-independence: Muslim elite all over India adopted Urdu. In 1948 Jinnah declared that Urdu would be the national language but provinces could use their languages. Opposition against Urdu was there in East Bengal. This became more pronounced after the death of Jinnah as controversies erupted on constitution making. Language Movement started in East Pakistan February, 1952. There was a complaint about anti Bengali language attitude of the federal government. Two-language formula was adopted in 1954. Since 1973 Urdu was adopted as national language along with the support for development of regional languages.

5: PARLIAMENTARY OR PRESIDENTIAL

There was a consensus for parliamentary system. But there was a limited demand for presidential system. Supporters of Presidential system became dominant after the 1958 military takeover. The 1962 Constitution was a Presidential constitution.

6: THE ISLAMIC OR SECULAR STATE

From the very beginning of Pakistan Movement there was an agreement that the state will have close relationship with Islam. Muslims defined their national identity with reference to Islam and its heritage. Some opposition came from the Congress members of the Constituent Assembly, and a few secularists. There was a BROAD AGREEMENT that the state will identify itself with Islam. The Constituent Assembly took time to define the precise relationship between the state and Islam.

Objectives Resolution rejected theocracy in Pakistan and provided the basic objectives for the future constitution of Pakistan. The issues to be addressed were:

1. Scope of legislation for an elected Assembly?
2. Who will decide about the Islamic nature of laws? Should a Board of Ulema be given this power?
3. Position of women, vote and work?
4. Religious minorities? Discussion in the Constituent Assembly and outside continued. There was an active demand by religious elements for Islamic political system. In this context the leading Ulema of various sects presented famous 22 points to provide a religious base to the future constitution.

The Key Issue: What kinds of institutions and processes have to be created to translate the notion of supremacy of the Qur'an and the Sunnah

- The Constituent Assembly adopted a middle course and a modernist perspective.

- Spirit of Islamic principles and values, modern notions of governance, representation and administration were amalgamated. Islamic provisions would be taken up when we discuss the constitutions.

CONSTITUTION MAKING (1947-56)

Constitution is a basic document in the handling of domestic affairs. It sets out the framework for governance and exercise of power. It gives guiding lines of relationships among the federating units. Law making is always within its limits. The modified Government of India Act (1935) became the Interim Constitution of Pakistan in 1947. The Constituent Assembly (CA) was given the task of framing the Constitution. The first meeting of the CA was held on August 11, 1947 at Karachi.

The process began with the passing of the Objectives Resolution in which the Islamic and democratic values were adopted as grounds for the future constitution. The Basic Principles Committee (BPC) consisting of 24 members was made to work for the constitutional powers. The various sub-committees on Federal and provincial powers, Franchise, Judiciary, and Fundamental Rights started working. Board of Talimat-i-Islamia was also set up to seek advice on the religious matters.

First BPC Report, 1950

- 1: The Objectives Resolution to be included in the Constitution as the directive principles.
- 2: Legislature: Two houses of the parliament. Upper: (House of Units) Equal representation for the units Lower: (House of People) On the basis of Population. Both the Houses would enjoy the equal powers.
- 3: The Head of State elected by joint session would be for five years (Two terms only). President had discretionary and emergency, appointment and other powers. President was not answerable to anyone, might be a Muslim or non-Muslim, would be assisted by the Prime Minister (PM) and Cabinet that would be answerable to the CA. Parliament may impeach him by 2/3 majority. He was given the power to abrogate the constitution.
- 4: Cabinet responsible to both the Houses.
- 5: No mention of national language

Criticism: This report was severely criticized throughout the country. It could not satisfy both the wings, East and West. The religious group objected that the report contained nothing about Islamisation. On the question of representation, the East Pakistan (EP) protested that their majority had been denied by the Report. They remarked that they were thrown into a permanent minority. The population of EP was slightly larger than that of the West Pakistan (WP) but it was treated as the small provinces because both the Houses were given equal powers. So the domination of WP was intolerable for the East wing. The language issue proved subversive to the national solidarity. The Eastern Pakistanis condemned the proposal that made Urdu as official language.

Second BPC Report, 1952

1. Head of State would be Muslim and no change in powers.

2. Equal representation to East and West wings:

UH (Upper House) 60, 60

LH(Lower House) 200, 200

3. More powers were given to Lower House. Cabinet was made responsible to Lower House.

4. It was promised that law making would be in accordance with ISLAM. No law would be made in violation of Islamic principles.

5. Advisory Board of five Islamic scholars was founded.

6. Silent on national language

Criticism: The politicians particularly from the Punjab deplored the Report because formation of the UH on the basis of representation was not acceptable. It was declared against the principle of federation. The WP favoured equality only for Upper House. The political crisis removed Prime Minister Nazimuddin and attention diverted from the core issue.

Third Report: Muhammad Ali Formula October 1953

The proposals were revised in the light of the criticism and decided:

Upper House: Equal representation to all five units

Lower House: More representation to Eastern part While in joint session, both wings had equal representation:

	East Pak	West Pak
Upper House	10	40
Lower House	165	135

Joint Session	175	175

Decision by majority but it must include 30 percent members from each zone.

Criticism: It suggested some difficult process but mostly it was widely acceptable. Two languages, Urdu and Bengali, were approved as official languages that injured the national unity as Quaid-i-Azam had wished Urdu as national language. This is important that after the Formula, the work began on constitution drafting because the deadlock was over.

CA Dissolution: In October 1954, GG (Governor General) dissolved the CA that was challenged in the Sindh court by Maulvi Tamizuddin. The court declared the dissolution illegal but the Federal Court upheld the GG action but asked for setting up an elected CA.

2nd Constituent Assembly, June-July 1955: Ghulam Muhammad called a Convention on May 10, 1955. All its members were to be elected indirectly (by the provincial assemblies). In this way, the 2nd CA came into existence.

One Unit Scheme, October 1955: The presence of different provinces in the WP had complicated the issue of the WP representation in the CA. It was handled by uniting all the WP units into ONE (One Unit, October 30, 1955). Now both the parts had become two units and could be addressed equally.

Constitution-making: One Unit scheme helped the task of constitution making to accomplish successfully. The previous committees report helped the new Assembly that completed its work and presented in the 2nd CA on January 9, 1956. It, with certain amendments, was approved on January 29, 1956 and enforced on March 23. With this Pakistan had become an Islamic Republic.